

**HARISH SALVE***Senior Advocate, Supreme Court*

A CASE FOR PROSECUTION

The criminal justice system needs a fix through police reforms, setting up an independent prosecution agency and decriminalising our political setup

Our criminal justice system is in tatters—justice delayed is justice denied—but that is just one of the ways in which we deny justice to ourselves. Shoddy investigations leading to poor conviction rates, framing innocent people to get the heat off high profile crimes, goofed up trials, witnesses turning hostile. You name it, it happens in our system. As per the NCRB, conviction rate for IPC crimes decreased marginally from 42.9 per cent in 2006 to 42.3 per cent in 2007. But NGOs tell a different story—in one report it was suggested that the reality is that our conviction rate is as low as 6.2 per cent for assault and murder cases and is 4.8 per cent for molestation cases. The improved figures include cases where the accused pleads guilty and is let off with a fine.

A deadly mix of lack of investment in human resources and infrastructure and an archaic structure of police that breeds incompetence, an abysmally low judge strength and not the least, rampant political interference in the process of law, have contributed to the disease that has beset our criminal justice system. The criminal justice system—comprising investigation of crime and expeditious trial, while at the same time affording them all the protection for the safety of the innocent built into such a system—evolved over years of experience of abuses and excesses. Each segment needs urgent and drastic reform.

The Indian police force suffers from a lack of cohesion and its concomitant fall-out on the morale of the force. The old structure put in place by the British where a small fraction of officers are recruited to the IPS (a Central service which prior to Independence was manned by the British) and the rest of the force is in the state police contributes to this lack of cohesion. Selection

to the IPS is through the UPSC. Recruitment to the state services is at the state level—the repeated successful challenges to the recruitments to the state police bear testimony to the irregularities in the selection.

The police is hopelessly understaffed and poorly paid. The salary is nowhere commensurate with the enormous powers conferred—the most dreaded being the power of arrest. The result? Rampant corruption. Add demoralisation to this and it is a sure recipe for catastrophe. We lament lack of sensitivity in the police but given the conditions in which they work, one wonders how they perform as much as they do. The National Police Commission (1977-81), various high-powered committees and commissions—the National Human Rights Commission, Law Commission, Ribeiro Committee, Padmanabhaiah Committee and the Malimath Committee on Reforms of Criminal Justice System—have examined the issue of police reforms. On August 3, 1997, a letter was sent by the home minister to the state governments revealing a distressing situation and expressing the view that if the rule of law has to prevail, it must be cured.

When the system refused to respond, the Supreme Court finally issued directions (based on a PIL filed by an ex-police officer) to the Union and state governments. These included establishment of the State Security Commission, appointment of the DGP on objective criteria with a minimum tenure, postings of IGS, DIGs, SSPs and SHOs with minimum tenures, and most importantly, the Police Establishment Board in each state which shall decide all transfers, postings, promotions and other service-related matters of officers of and below the rank of DSP. This judgement has remained as a parchment in a glass case. If a full scale reform is too tall an order, the

PRESCRIPTION

➤ Improving numbers and the salary of policemen will ensure justice to the common people

➤ Need highly-qualified investigators and prosecutors to deal with white, gold collar crimes

➤ Curb the growing influence of criminals in politics to restore the confidence of people